



May 6, 2026

Arlington Town Meeting Members
Town of Arlington
730 Massachusetts Avenue
Arlington, MA 02476

Dear Town Meeting Members,

The Arlington Chamber of Commerce writes in support of Article 53, which preserves the original meaning of the commercial bonus provision in Section 5.8.4.E(1) of the Zoning Bylaw — the requirement that 60% of the ground floor at street level be occupied by eating and drinking establishments, business services, childcare, or retail uses in order to qualify for additional height in the Mass Ave / Broadway Multi-Family overlay districts.

The Chamber has long advocated for substantial, well-sized commercial spaces along Broadway and Massachusetts Avenue. When we commented on the original MBTA Communities proposal in October 2023, we expressed concern that even a 60% requirement, applied to the ground-floor footprint, could produce storefronts too small to support the kinds of retail, food, service, and childcare uses that residents rely on. We urged the Town to consider a higher first-floor percentage on zero-setback buildings and to incentivize second-floor commercial space, precisely because ground-floor commercial space needs to be substantial enough to be leasable, to draw foot traffic, and to anchor an active streetscape.

Against that backdrop, we are concerned by recent discussions of whether “60% of the ground floor” might be calculated using Gross Floor Area, a measure that does not appear in the bonus rule and that is distinct from the ground floor itself. In practice, calculating the 60% on a base that excludes lobbies, amenity space, back-of-house, and parking can produce considerably smaller commercial footprints than a reading tied to the building’s ground-floor footprint. From the Chamber’s perspective, the smaller the commercial space, the harder it is to attract and retain the businesses we want. That outcome would run counter to what the Chamber has advocated for since 2023 — commercial spaces sized to be commercially viable.

Article 53 offers a helpful clarification: by drawing on language from the state building code, it ties “the ground floor” to the building’s footprint, so the commercial requirement scales naturally with the size of the building. That is the version of the rule Town Meeting debated and adopted in 2023, and it is the version that produces commercial spaces large enough to be leasable, occupiable, and genuine contributors to our commercial corridors.

Bonuses for additional height and reduced setbacks are not required by state law. They are concessions Arlington has chosen to offer in exchange for genuine public benefit. The Chamber believes those concessions are most valuable when paired with substantial commercial space. Article 53 helps ensure that the bonus continues to deliver that benefit, supports our small businesses and tax base, and reflects the careful public process that produced the 2023 bylaw.

For these reasons, the Arlington Chamber of Commerce respectfully asks Town Meeting to support Article 53. We thank Joanne Cullinane, Larry Slotnick, and the petitioners for bringing it forward, and we thank Town Meeting for your continued attention to the conditions that make Arlington a place where people want to live, work, shop, and visit.

Sincerely,

Beth Locke

Beth Locke
Executive Director
on behalf of the Chamber Board of Directors

Inserted at the request of Larry Slotnick, precinct 7, and Joanne Cullinane, precinct 21

Commentary · Views (opinion)

Commentary: Article 53 seeks to preserve the intent of MBTA Act overlay ‘Bonus Rule for Commercial Use’

March 17, 2026

by

[YA Guest Opinion](#)

By Joanne Cullinane and Larry Slotnick

As Town Meeting Members, we closely followed debates and public engagement sessions as Arlington was crafting its MBTA Act overlay in 2022-23. At that time, Arlington created a zone where multi-family housing (3+ units) may be built “as of right,” and created relaxed dimensional rules for that housing.

We have attended recent Redevelopment Board meetings where the first projects seeking bonus floor awards in the overlay (28-unit and 14-unit buildings, respectively, where 2- and 3-unit multi-families stand) are under review for compliance. Bonuses were not meant to be discretionary. Yet we see discretion threatening to overtake the process due to a misinterpretation and misapplication of the bylaw.

This is why we submitted Article 53 in the Town Meeting warrant for the 2026 legislative session.

The vast majority of residents who speak at board meetings have expressed anger and dismay as the board floats the idea of reinterpreting the clear and verifiable threshold found in our commercial bonus rule so as to water down (Article 55 addresses the board's idea of watering down the thresholds contained in separate bonuses for extra affordability) the size, and therefore the viability, of the new commercial spaces required to qualify for extra mass and height. Allowing this would abandon the types of desirable commercial spaces we intended to reward and would subvert the 2023 Town Meeting vote.

Bonuses are not required under state law, and few towns have them in their MBTA Act overlays. Bonuses provide additional concessions on top of the generous baseline concessions that already allow developers to build four-story buildings in the Mass. Avenue/Broadway portions of the overlay, i.e., automatic baseline relief, allows for 52-foot-tall buildings with no open space requirements, and no floor-area-ratio minimums or unit maximums. Bonuses on top of such relief should be difficult to obtain and reserved for developers who deliver significant benefits.

Our bonus rules were drafted, circulated, presented to the Redevelopment Board, redrafted, and presented to Town Meeting, with the exact language now found in our bylaw after this came to a vote at Special Town Meeting 2023. The commercial bonus – the most generous – states that a developer may petition for a fifth floor on Broadway – or a fifth and sixth floor on Mass. Avenue – along with a zero setback (i.e., building to the sidewalk) if they set aside “60 percent of the ground floor” at street level for commercial space. Arlington needs substantially

sized commercial spaces for its tax base, and undersized commercial spaces hurt neighborhood vitality by sitting empty.

The bonus rule language Town Meeting voted on in 2023 is clear. It fosters predictability, proportionality, and accountability. As a straightforward description of the building's footprint, it requires that the ratio of commercial space grow in direct proportion to the building's footprint. Yet a few individuals are now invoking Gross Floor Area. GFA never refers to the ground floor and is never mentioned in our bonus rules.

This GFA misreading – on which the board is not in agreement – would allow developers to exclude whatever amount of the ground floor they desire for other uses first, before calculating the commercial space required for a bonus. It literally turns commercial space into an afterthought. It also creates a rule with no lower limit for how little of a space can be used to justify a massive bonus. Such a bonus is a freebie and not what Town Meeting voted for.

A novel GFA misreading promoted by a few at this late stage would create a process that is unpredictable and unverifiable – things the MBTA Act was meant to rectify and which are incompatible with As of Right zoning. Nor would simply slapping a minimum threshold on a misinterpretation that invokes GFA retain the proportionality and accountability contained in our current law. An untethered minimum would be open to serious misuse. A minimum size constraint should be added only if the building footprint rule is upheld first.

The GFA misreading would set an erroneous precedent based upon a misinterpretation. If unchecked, it would reshape every MBTA Act overlay project on Mass. Avenue and Broadway, from East Arlington to the Heights. New

calculations should not be substituted to allow bonuses in every building, under conditions never incorporated into our bylaw language after a period of public input involving thousands of people.

Please support Article 53, which preserves the definition of “60 percent of the ground floor” baked into our commercial bonus rule. It does so by adding clarifying language from the state’s building code. Article 53 preserves clarity, proportionality, and accountability, and yields a mix of purely residential buildings and some that include the properly sized commercial spaces we asked for under our bonus rules. If the process is to be respected, we must preserve our bonus rules, as written, debated, and passed by Town Meeting.

This commentary was published on March 18, 2026. Joanne Cullinane is a Town Meeting member from Precinct 21, and Larry Slotnick is a Town Meeting member from Precinct 7, and they submitted Article 53 for this year’s Town Meeting session. Slotnick formerly served on YourArlington’s board of directors. Town Meeting is slated to have its opening session on Monday, April 27.

Submitted by Joanne Cullinane, Precinct 21

In this statement, the former ARB Chair expresses wholehearted support for our clarification of how the commercial space required to qualify for a developer bonus was intended to be calculated, and on the meaning of 'ground floor' as understood by the Board in discussions and hearings on the MBTA Act Overlay as it took shape. This statement is from the Board's hearing on Article 53 on March 30, 2026.

Our original motion, like our substitute motion, defined ground floor as everything under the roof of the floors above and this is what Rachel agrees was the agreed upon standard.

Link to video: <https://youtu.be/m4EkPg7BtTQ?si=NJFpIRkPGqGtemXI&t=6039>

“Uh, I am in support of this article.. Um.. I do.. believe that this is the appropriate way that we need to define the ground floor area area specific to the meaningfully sized commercial.. development that was contemplated when this was approved by Town Meeting and in all of the discussions and hearings that we had as a redevelopment board leading up to the final warrant article.. Um, for the magnitude of the bonus provided and the sizes of these developments, we should be receiving uh meaningful uh commercial development spaces so I'm in favor.”

Inserted at the request of Larry Slotnick, pct 7, and Joanne Cullinane, pct 21

Arlington Zoning Bylaw, 2.8 Basic Provisions:

Gross Floor Area: The **sum of the horizontal areas of all stories of a building or buildings on a lot**, measured from the interior faces of exterior walls, or in the case of a common wall separating two buildings, from the centerline of such common wall as regulated under Section 5.3.21.

Link to Arlington's zoning bylaw:

<https://www.arlingtonma.gov/home/showpublisheddocument/43413/639033980621230000#page=14>

Submitted by Joanne Cullinane, precinct 21

Presentation by the Town's Economic Development Coordinator to the Redevelopment Board on August 5, 2024. These are the portions of the Q&A where they discuss types of spaces that businesses looking to set up in Arlington are seeking. This discussion is relevant because the board's re-interpretation of ground floor at street level to exclude portions of the ground floor - though we still don't know fully what they are excluding - would shrink the size of the commercial space gained in exchange for the extra height and mass conferred to developers via this bonus.

Stand-alone square foot minimums floated by Board members in passing would not be proportional to the building, as the original 60% of Footprint is, and were also below what was described as in demand by businesses looking to set up here.

<https://youtu.be/HWIOtWojpGY?si=B-M9HoCeLGA2s2e&t=7106>

1:58:25 - 2:00:56

2:02:35 - 2:04:25

>> RACHEL: Let's start with Steve. Any questions or comments for Katie?

>> STEVE: Thank you for the overview. I hope-- would it be possible to have the slide deck added to our agenda? I'd like to show it to some people. I do have two questions.

>> KATIE: Yes!

>> **STEVE: First, the director of the Chamber of Commerce, Beth Locke, she appeared before the Redevelopment Board last April to talk about active business development from her perspective. And one of the bit of feedback they recall getting from that meeting was that there are a lot of businesses looking-- that would like to be in Arlington. But we have spaces that are not appealing or we don't have the right kind of spaces or not the kind of spaces they're looking for.**

So my first question is do you agree or disagree with that? And why?

>> **KATIE: Yes, I definitely agree with that.** I get calls weekly from people looking to move into Arlington, and I keep a list of them. **Like, overall, our commercial stock for space is very old.. and it's very small. I'd say overall, we-- our spaces are, like, 2,000 square feet and under, generally, which suits some people, but not most people.**

Um, and what we do have is very old, so it requires a lot of upfront costs, which can be really daunting to a lot of small-business owners.

Um, there's, of course, the outliers. 30 Mystic Street is the big outlier, and that's been vacant for about a year so it takes a long time to make the right match for those kinds of spaces. So that's kind of the flip side of the problem, where you have this.. This unicorn of a lot, and trying to make the right fit for that is really difficult, as well.

But, absolutely, I have a lot of people coming to me saying they really want to move into Arlington because it's such a great community, but making that match.

Um, we've also...um.. sometimes had the problem where I finally get in touch with people, and they have trouble reaching brokers. So we do have these vacant storefronts, but the real estate agents aren't picking up the phone, or they're not having an easy time getting in touch with them.....

<https://youtu.be/HWlOtWojpGY?si=ocDMjZXqvZ8uGF1J&t=7356>

2:02:35 - 2:04:25

>> **GENE:** Yeah, thank you very much for the presentation. I just want to uh follow up on part of Steve's question, which was I think one of the questions we all had is, **so what types of spaces are people looking for that Arlington doesn't have? I mean, you said, you know, the spaces are too small, too old. Like, what size? What are they looking for, and are they retail, are they office? What are we talking about?**

>> **KATIE:** **Not office. Less office, more retail.** More fitness. We're already seeing a lot more fitness-centered businesses come into Arlington. But I'm still getting a lot more calls that even more want to come in.

Unsurprisingly, more childcare facilities want to come into Arlington. **But overall, you're looking at least to like 3,000 5,000 square feet ..want to come in. That's really the sweet spot. Um. Anywhere up to 8,000 square feet.**

There are-- not to go on-- like-- I'm-- I'll start talking about specific properties. We have some on, like, Dudley Street that could work. But then property owners, once they get over a certain threshold of square footage, they want tenants to take the whole building, which makes sense from an economic standpoint. But that's very difficult for tenants.

But, yeah, retail, fitness. Less so restaurants, um, which I'm not as surprised about because we do have quite a healthy hospitality sector in Arlington. We do have a lot of eateries. Those are the two that I see trending right now, and childcare.

Submitted by Larry Slotnick, pct 7 and Joanne Cullinane, pct 21

We include this to prevent confusion since compliance was raised as a potential issue in the Redevelopment Board's report to Town Meeting in regards to Article 53.

This 24 second video clip from the Q&A / open comment period of the second MBTA Act Overlay public hearing at Town Hall on July 25, 2023, features the CEO of Utile explaining that bonuses are not part of the modeling that they did for the state as all bonuses are extra/optional and do not affect a Town's compliance in any way.

<https://drive.google.com/file/d/1xBSFCL5bm8uUlqjE3v2J-Vk3RUs5KqJu/view?usp=sharing>

Inserted at the request of Joanne Cullinane, pct 21, and Larry Slotnick, pct 7

https://youtube.com/clip/Ugkx8LWikYKyEBIVF-KUJmtAhtrUj6P4hu_3?si=osYcEICkHFkxefWt

This clip is from the ARB's final hearing on Article 12, in 2023, in which all of the terms of the MBTA act overlay were reviewed for a final time, and agreed upon in a unanimous 4-0 vote. This was at a public hearing at Town Hall on October 2, 2023 and this is the only part of the evening when the Board addressed the commercial bonus rule.

The context was that they were reviewing whether 60% was a *high enough* percentage of the ground floor to require for a commercial bonus in the overlay because it was stated that the Chamber of Commerce had just written to them asking that the ground floor percentage be higher and that second floor commercial be incentivized as well. The Chamber's position was that 60% of the ground floor would in most cases yield spaces that are too small.

The CEO of Utile was asked to explain why 60% was optimal, per his company's recommendation, and he explained that it worked on buildings with both large and small 'Footprints' (i.e. whether the Footprint of the building was 10,000 square feet or 2000 square feet). He described not just the percentage but the methodology under which this percentage was to be applied.

Link to full video available within this YouTube screen for full viewing.

(Cover Letter for Dominic Vecchione Letter, Submitted by Joanne Cullinane, precinct 21)

In this August 10, 2025 letter (below), Dominic Vecchione raises concerns about the shadows and safety that rows of five-story buildings with no setbacks created for neighbors and pedestrians. The letter speaks to the fact that watering down bonuses so that they are available on even very small lots creates issues that are compounded by this lowering of the bar ("canyonization" and safety hazards, especially for the children on this commuting route).

The letter (below) speaks to the tradeoff between burden and benefit and why the 60% ground floor commercial bonus rule was intended to be a high bar and strict threshold. The commercial use bonus was not intended to enable any lesser amount of commercial to be used to satisfy the 60% ground floor threshold. Instead, developer bonuses were meant to bring the maximum intended benefit and to be available only on lots with the necessary space. To realize this intended benefit, and get a variety of building sizes and shapes, the rules should be strictly enforced, and a full 60% of the ground floor 'footprint' allotted to commercial use so that the neighbors - and the town - receive maximally viable businesses and a variety of building types.

+++++

Dominic Vecchione

email: dgvarch@gmail.com

August 10, 2025

I am providing comments to the plans submitted for the property at 126 Broadway, Arlington MA.

There are several areas where the proposed plan does not comply with the Zoning Bylaws.

1. Arlington Zoning Bylaws Req. for open space is 30% of the lot size.

A. Proposed open space is 18% open space which is a reduction by 40%

2. Arlington Zoning Bylaws Req. front set back is 20'-0".

A. Proposed Front set back is 0'-0" which is a reduction by 100%

3. Arlington Zoning Bylaws Req. Side yard setback is 10'-0".

A. Proposed Side yare setback is 5'-0" which is a reduction of 50%.

4. Arlington Zoning Bylaws Req. Height is 2 ½ stories or 35'-0"

A. Proposed Height is 5 stories or 50'-0" which is an increase of 48%

5. Arlington Zoning Bylaws Req. off street parking is 14 spaces

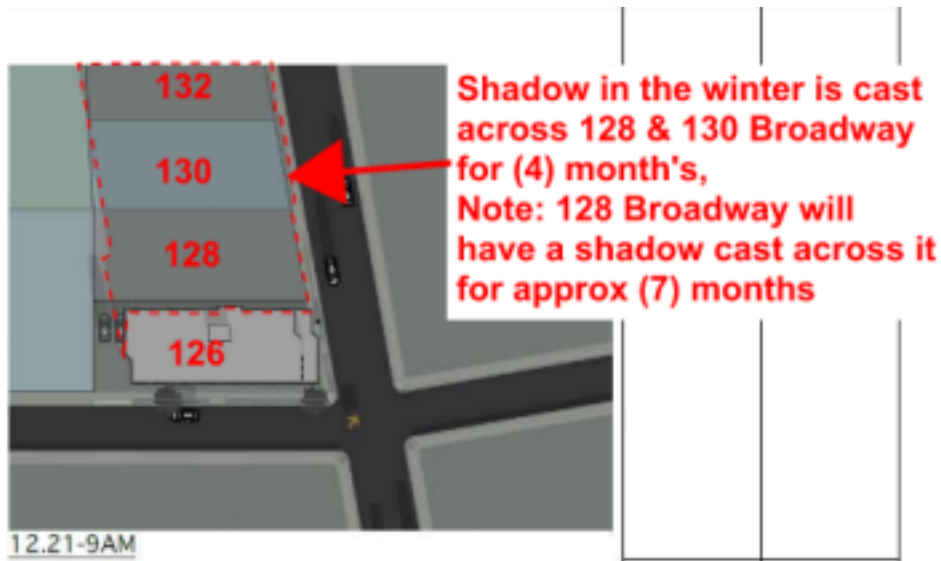
A. Proposed off street parking is 6 spaces which is a reduction of 56%.

The Shadow study (below) does not properly show that there is an impact to the property at

128, 130 & 132 during the winter for (4) months +/- and that the property at 128 Broadway

will have a shadow cast on it for approx. (7) months a year. A project should not have such a

Large impact on its adjacent neighbors.

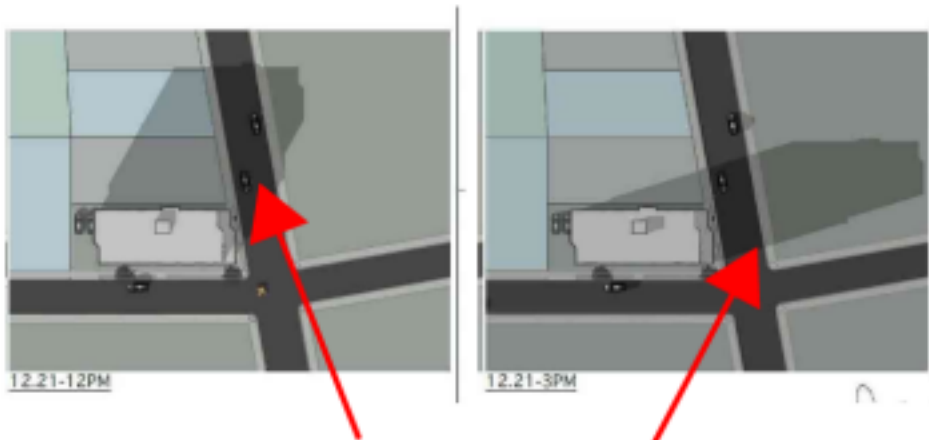




The

Shadow study(below) and the perspective (above) do not meet the Town of Arlington

Design guidelines for commercial Corridor, this will create a Canyon effect and is not inviting at the street



Arlington Design standards for Commercial Corridor

1 BUILDING SETBACKS

ENCOURAGE

- An appropriate relationship to the street based on the street size and sidewalk width
- Plazas and open spaces with landscaping and street furniture
- Upper-level step-backs to diminish effect of tall building height

DISCOURAGE

- The "canyon effect" with large buildings in close proximity to the street
- Surface parking in setback zones
- Large setbacks that disconnect the building from the sidewalk and public realm



The Town of Arlington Fire Department should be consulted, since there is the potential of another project with a wall located 5' from the Property line. If this is the case then this could be a vertical Canyon between two buildings located only 10' apart. Which could create an issue in a Fire. The question is should this wall and windows be protected with a 1hr fire rating for safety?



Scale of project on the right will overpower the existing homes.

The above is a comparison of a well-known building in town to demonstrate what the height will be

CONCLUSIONS:

The project at 126 Broadway Arlington Ma, not only will change the fabric and character of the neighborhood but will set the stage for all future development.

It appears that the size and scale of the project will increase density by over 100% on

an existing (2) family lot. To maximize profit, it appears that most of the Zoning Bylaws are being ignored

Based on the height and scale of the project it will dominate the existing homes and

will create a Canyon effect on homes and Broadway; this will be more noticeable during the winter months when the lack of sunshine is more noticeable

While development is essential the project needs to be sensitive to its surroundings and not at the expense of the neighborhood.

I hope that the board considers all of these factors and rejects the proposal in its current form.

Thank you

Dominic Vecchione
3 Country Club Dr.
Arlington MA. 02474
email: dgvarch@gmail.com
cell: 781-385-9110

August 10, 2025

Inserted at the request of Joanne Cullinane, precinct 21



October 2, 2023

Arlington Redevelopment Board
Town of Arlington
730 Massachusetts Avenue
Arlington, MA 02476

Dear Member of the Arlington Redevelopment Board,

The Arlington Chamber of Commerce has long been committed to the prosperity and growth of our local businesses and the vitality of our community. We believe that updated zoning ordinances that encourage economic development can play a pivotal role in fostering a vibrant and sustainable community.

The Arlington Chamber of Commerce believes that the MBTA Working Group's proposal presents a strong plan for both housing and commercial growth. Arlington's existing and future small businesses will benefit from an increased customer base and foot traffic resulting from additional housing units.

The Chamber supports incentivizing mixed-use development - on both the first and second floors - of five and six-story buildings along Broadway and Mass Ave respectively. Arlington is in need of higher quality commercial space to attract a desirable mix of retail and commercial businesses. However, we urge the board to consider increasing the first floor percentage requirement on zero foot setback buildings and incentivize second floor commercial space to create an active ground floor design and promote a lively pedestrian streetscape. We are concerned that, in most cases, the 60% requirement will result in spaces that are too small for the types of businesses and retail that support needs of the local population.

The Chamber also supports the idea of excluding parcels on Mass Ave., east of Orvis Road, from MBTA communities overlay in favor of a future master plan focused specifically on protecting small businesses, reinforcing the area's character, and requiring standards for quality storefronts.

In closing, we thank you for your dedication to our community and working to achieve smart growth options that both meet the MBTA Community guidelines and increase housing availability in the town of Arlington. Given the small portion of available commercial space in our town, we ask the select board to maintain their focus on preserving available spaces for business and enhancing those available in the future, and leveraging zoning changes to lower

the barriers for economic development. We also urge you to consider those aspects of the upcoming zoning changes that will support future economic growth to not only accommodate population growth, but also to create a thriving and dynamic economic climate that makes Arlington a desirable place to live, work, shop, and visit.

Sincerely,

Beth Locke

Beth Locke
Executive Director
on behalf of Chamber Board of Directors

From: Carla Paynter Valentine

Sent: Monday, April 6, 2026 3:33 PM

To: Kin Lau; Stephen Revilak; Rachel Zsebery; Shaina Korman-Houston; Vincent Baudoin

Subject: Dear Arlington Redevelopment Board- in regards to 126-128 Broadway

Dear Arlington Redevelopment Board,

I am an Arlington resident- I live on Ernest road.

I know you all are doing so much work for our community. However in regards to the 126-128 Broadway development, adjustments to the proposal are necessary.

I intended to say the below at the meeting tonight 4/6, but can't- sick child. and I sent Claire this correspondence too late for it to be included. I wanted to send along to you all for your consideration:

"Arlington Redevelopment Board meeting 126-128 Broadway

With respect to the time and effort put into this proposal by the Board and the Applicant, there are adjustments that need to be made.

I echo my Arlington neighbors. To the Board, please start listening to us.

Let's work together to address the over capacity issue this proposal presents:

Let's

-Respect the bylaws and bonus rules, 60% commercial space necessary, ground floor defined per state definitions- so get rid of the 5th floor on this proposal

-Reduce the number of units to 14.

-Get at least 22.5% affordable units in= 4 affordable units

-Ensure that the commercial space and the building itself brings the maximum benefit to the town/community.

To prove this proposal presents an over capacity issue-

Let's compare this proposal to a comparable plot, 117 Broadway (diagonally across the street)

117 Broadway:

- Is Approx, a .25 acre plot of land (larger than 126-128 Broadway)
- No residential house around it (this is significant)
- 4 stories tall (with the 4th story set-back completely, all around the building, all four sides- which looks really good)
- 14 units (half the number of 126-128 proposal- all affordable)
- 17 parking spaces (enough parking for one car per unit, plus parking for the commercial space)

- 12 - 96 gal trash receptacles, 12- 96 gal recycling receptacles, 2 compost receptacles
- Commercial space held by Arlington Eats (they dispose of their waste in these receptacles- their cars park in the parking lot)

This proposal 126-128 Broadway

- Is Approx. a .23 acre plot of land (smaller than 117)
- Residential houses all around it (this is noteworthy- this is significant)
- Proposed 5 stories tall (set-back on one side- front, no set-back on three other sides of the building)
- Proposed 28 units (double that of 117- on a smaller plot of land-how many affordable?-)
- Proposed only 10-12 parking spaces (less than $\frac{3}{5}$ of 117 Broadway's capacity for parking- not enough parking for each resident)
- Proposed only, 4- 96 gal trash receptacles= two, 2 cubic yard wheeled containers for trash ($\frac{1}{3}$ of 117 Broadway's capacity for waste), proposed 4-6 96 gal recycling receptacles ($\frac{1}{3}$ of 117 Broadway's capacity for waste), no proposed compost receptacles
- Commercial space rented by unknown- (unknown how they will have room to dispose of their waste, and unknown where employees will park).

Questions for the Applicant:

-Did you talk to any of the neighbors around this lot? If so, how many? What do you know about our community, what research have you done? What do you know about the goings on of the Broadway/Everett intersection?- it's quite busy

-Where are you going to tell your other 16-18 residents to park their cars? Where are you going to tell the employees of the commercial space to park their cars?

-Where are you going to tell your residents to dispose of their waste (there aren't enough receptacles)? Where are you going to tell the commercial space employees to dispose of their waste? What if residents want to compost?

-What will you charge for a 1 bdrm? What will you charge for a 2 bdrm? How will your rental prices affect my rent?- i live close by

-Will there be sound proofing in all the interior walls/floors to improve the quality of living?

To the Board:

This proposal is over- capacity. Let's make some changes and get the most benefit for the community and town:

-This lot has a capacity of 14 units (maximum)

-Get at least 22.5% affordable units in= 4 affordable units.

-Ensure the commercial space and the building itself brings the maximum benefit to the town.

60% of the ground floor needs to be used for commercial space., the definition of the ground floor, per state definitions, as "everything under the horizontal projection of the roof or floors above".

Thanks for your time and consideration and your service to Arlington. -Carla